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DEMURRERS WITHOUT MOTIONS TO STRIKE

The Court tenders the following

tentative decision in the matter Margaret Elizabeth Cipriano v.

ServiceTitan, Inc., et al., Los Angeles County Superior Court case number 26STCV04910,

set for hearing on August 24, 2026. Michelle Drucker, Lexi Gonzalez, and

ServiceTitan, Inc. (ST) (collectively, Defendants), each separately demur to specific causes of action

contained within Margaret Cipriano's (Plaintiff) first amended complaint (FAC).

Plaintiff opposes each demurrer. Drucker's demurrer is sustained in part, and

Gonzalez and ST's are overruled.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a

cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the

legal sufficiency of the factual allegations in a complaint." (Yalung v.

State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal

sufficiency, a court will treat the demurrer as admitting all material facts

properly pleaded, but not contentions, deductions or conclusions of law. (Esparza

v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well

settled that a "demurrer lies only for defects appearing on the face of the

complaint[.]" (Stevens v. Superior Court

(1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting

all material facts properly pleaded, but also give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co.

(1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint

must be construed liberally by drawing reasonable inferences from the facts

pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank

v. Kirwan (1985) 39 Cal.3d 311,

318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment

Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is

properly sustained only when the complaint, liberally construed, fails to state

facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained or motion to strike is granted, the Court determines

whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a

plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendants demur to the following causes

of action on the grounds that Plaintiff has not pled sufficient facts: (1)

Plaintiff's second cause of action for gender harassment in violation of the

Fair Employment and Housing Act (FEHA); (2) tenth cause of action for

defamation; and (3) eleventh cause of action for compelled self-defamation. (Code

Civ. Proc., § 430.10, subd. (e).) The Court will address each cause of action in turn.

Plaintiff has pled sufficient facts to

state a claim for gender harassment under the FEHA with respect to Gonzalez and ST.

Defendants argue that Plaintiff has not

pled sufficient facts to constitute a cause of action for harassment based on

sex or gender. Under the FEHA, it is unlawful for an employer to harass an employee because of their membership in a protected class. (Gov. Code, § 12940, subd. (j)(1).) Discrimination based on gender, disability, or marital status includes that based on a “perception that the person is associated with a person who has, or is perceived to have, any of those characteristics or any combination of those characteristics.” (Id., § 12926, subd. (o)(3).) “To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) [based on a protected characteristic], and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment.” (Wawrzynski v. United Airlines, Inc. (2024) 106 Cal.App.5th 663, 692 (Wawrzynski).)

Here, Plaintiff is a woman, a member of a protected class based on her gender. (FAC ¶ 7.) She alleges that she was subjected to unwelcome conduct, comments, hostility, exclusion, and differential treatment because of her gender which created a hostile and abusive work environment altering the conditions of her employment. (Id. ¶ 28.) Specifically, Plaintiff alleges that once Gonzalez became her manager, she was subjected to hostile and disparate treatment. (Id. ¶ 9.) At meetings, Gonzalez would compliment male peers while singling out Plaintiff for criticism, despite her performance being equal or better. (Ibid.) Moreover, management granted a male employee’s request to change managers while denying Plaintiff’s. (Ibid.) Plaintiff further alleges that Gonzalez made multiple harassing and gendered comments to her about her appearance and implied that she was hired for her appearance to other coworkers. (Id. ¶ 10.) Plaintiff eventually formally complained to Drucker on September 29, 2025, but Drucker dismissed her complaints. (Id. ¶ 13.)

With respect to Gonzalez, Plaintiff has pled sufficient facts to state a claim for gender harassment. The comments and actions alleged created a sufficiently pervasive hostile work environment. Thus, Gonzalez’s demurrer is overruled. ST’s demurrer is also overruled, as it may be held liable under a respondeat superior theory. However, Drucker’s demurrer is sustained as to the second cause of action. The only allegations Plaintiff makes against Drucker involve her alleged dismissal of Plaintiff’s complaints about Gonzalez. Such actions do not constitute the making of a severely abusive work environment. Accordingly, the Court overrules Gonzalez and ST’s demurrers to the second cause of action and sustains Drucker’s.

Plaintiff has pled sufficient facts to

state a claim for defamation with respect to Gonzalez and ST.

Defendants argue that Plaintiff has not pled sufficient facts to constitute her tenth cause of action for defamation. “The tort of defamation ‘involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.’” (Taus v. Loftus (2007) 40 Cal.4th 683, 720.) Words constituting alleged defamation must be specifically identified within the complaint. (Vogel v. Felice (127 Cal.App.4th 1006, 1017, fn. 3.) To be defamatory, a statement must lower a plaintiff’s esteem or deters people from associating with them. (Nygaard, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1047–1048.) In assessing whether a statement is defamatory, courts must consider the totality of the circumstances. (Balzaga v. Fox News Network, LLC (2009) 173 CA4th 1325, 1337–1338.) And if a statement can be understood two ways, only one of which is defamatory, such a determination is within the province of the fact finder. (Arno v. Stewart (1966) 245 Cal.App.2d 955, 960.)

Here, Plaintiff

alleges that Defendants published false and defamatory statements concerning Plaintiff regarding her job performance and reason for termination. (FAC ¶ 76.) Plaintiff further alleges that she suffered harm to her reputation as a result. (Id.

¶ 77.) Specifically, Plaintiff alleges that Gonzalez told others Plaintiff was a “personality hire,” that the only reason customers liked Plaintiff was because she was pretty, that Plaintiff’s illness may not be real, and that it was a good thing she had “looks and brain.” (FAC ¶ 16.)

Some of these alleged statements are defamatory. The only statements identified verbatim are those referring to Plaintiff as a “personality hire,” claiming that her illness might not be real, and stating that she had “looks and brain.” (Ibid.) A statement may be defamatory if it “[t]ends directly to injure [Plaintiff] in respect to [her] . . . profession . . . by imputing to [her] general disqualification in those respects which the office or other occupation peculiarly requires.” (Civ. Code, § 46.) While the above statements may appear to be complimentary on their face, speaking positively of Plaintiff’s personality, appearance, and intelligence, the totality of the circumstances belies a potentially defamatory interpretation. Gonzalez’s statements could be construed as minimizing Plaintiff’s value at work outside of her appearance and personality. And where

a statement could be understood two ways, it is not for the Court to decide whether the statement is defamatory. (Arno, *supra*, 245 Cal.App.2d at p. 960.) Thus, Gonzalez and ST's demurrers to Plaintiff's tenth cause of action are overruled. However, the Court sustains Drucker's demurrer because Plaintiff does not allege any verbatim statements by Drucker.

Plaintiff has pled sufficient facts to state a cause of action for compelled self-defamation.

Defendants argue that Plaintiff has not pled sufficient facts to constitute her eleventh cause of action for compelled self-defamation. Self-publication of a defamatory statement may be imputed to the originator if "the person defamed [is] operating under a strong compulsion to republish the defamatory statement and the circumstances which create the strong compulsion are known to the originator of the defamatory statement at the time he communicates it to the person defamed." (McKinney v. County of Santa Clara (1980) 110 Cal.App.3d 787, 797–798.)

Here, Plaintiff alleges that Defendants made false statements regarding her termination. Specifically, she alleges that they cited her failure to meet a flawed metric in her performance improvement plan. (FAC ¶ 15.) This was allegedly pretext, as she was allegedly terminated as retaliation and to avoid paying her a bonus. (Ibid.) Plaintiff further alleges that she was compelled to repeat this false statement regarding her termination to other prospective employers. (Id. ¶ 81.) Based on these allegations, Defendant's knowingly published false reasons for Plaintiff's termination that she was forced to repeat to subsequent employers. Thus, Plaintiff has pled sufficient facts to state a cause of action for compelled-self defamation, and Defendants' demurrers are overruled.

C. Conclusion

The Court sustains Drucker's demurrer as to Plaintiff's second and tenth causes of action only. Gonzalez and ST's demurrers are overruled. 30 days leave to amend.